

File No.: EXP202207297

RESOLUTION No.: R/00267/2023

Considering the complaint filed with this Agency by A.A.A. (hereinafter the complainant) against EXPERIAN BUREAU DE CRÉDITO, S.A. (hereinafter the respondent) for not having properly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant, on April 4, 2022, requested the right of access from the respondent with NIF A82120601, and according to the complainant, their request did not receive the legally established response.

The complainant, with a submission date to this Agency of June 10, 2022, filed a complaint due to the lack of response.

And on August 31, 2022, this Agency, with the response from the respondent addressing the right, resolved to inadmit the complaint.

The complainant provided various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised, and, disagreeing with the resolution, on September 1, 2022, filed a motion for reconsideration which was resolved favorably, leading to the current complaint. The reason for the inadmission of the complaint was that, apparently, the respondent had attended to the right of access; however, the sending of the documentation from the respondent to the complainant occurred through an incorrect email.

Once the data was verified, this Agency accepted the appeal filed by the complainant, which stated this circumstance, and therefore the requested right was still not received.

SECOND: On February 8, 2023, the original complaint, the motion for reconsideration filed by the complainant, and the result of said favorable motion were resent to the respondent, granting the respondent a hearing period of ten business days to present any arguments they deemed appropriate. This entity, on March 27, 2023, submitted arguments in which, in summary, they prove to have attended to the right by correctly sending the requested information.

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LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for the Protection of Data is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, requiring them to respond to this Agency within one month and to prove that they had provided the complainant with the due response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will begin with an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

The purification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that a decision is made,

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whenever possible, due to the prevalence of alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to fulfill such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected

party.

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FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

In the case analyzed here, the respondent has now submitted allegations that prove they have addressed the right by sending the documentation to the claimant appropriately.

At the time, this Agency considered the right to have been addressed; the problem arises when the respondent confuses and sends the documentation to another email, and the claimant does not receive it. Therefore, once this issue has been rectified, the right is addressed in an untimely manner. Considering the cited provisions and other generally applicable provisions, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE for formal reasons the complaint filed by A.A.A. against the entity EXPERIAN BUREAU DE CRÉDITO, S.A. However, the issuance of a new certification by said entity is not warranted, as the response was issued late, without requiring additional actions by the data controller.

SECOND: TO NOTIFY this resolution to A.A.A. and to EXPERIAN BUREAU DE CRÉDITO, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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